ROSEMARY MAKOMBE
versus
PRINCE SOLOMON KADZUNGE
And
MASTER OF THE HIGH COURT, MUTARE

HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 19th & 26th January 2025

OPPOSED APPLICATION

Applicant in person
First respondent in person
No appearance for the second respondent

SIZIBA J:

1. The applicant filed the present application as a self - actor on the 17th of September 2025 seeking a declaratory order that she is the owner of stand 125 Old Chisamba, Sakubva, Mutare (hereinafter referred to as the property). She further seeks that the same property should be removed from the estate of the late Kenneth Paradzai Kadzunge and be registered in her own names.

2. The applicant's case is articulated in her founding affidavit and the annexures thereto. She divorced with her late former husband one Solomon Kadzunge on the 19th of August 1994 under case number 66/1994 at Mutare Magistrates Court. The said court which was sitting as a community court directed that the house was to remain 'as it was and it was to be sold by agreement of the parties.' On the 5th of November 1999, the late Solomon Kadzunge and his new wife Doreen Marekera defied the said court order and sold the house to one Joseph Mwasungani. The applicant under case number HC656/06 at the High Court in Harare successfully moved the court to nullify the cession of the property to Joseph Mwasungani and the City of Mutare was ordered to reverse the cession. The applicant alleges that Doreen Marekera then fraudulently registered the house in the names of the

late Kenneth Paradzai Kadzunge being a child of the late Solomon Kadzunge. The said Kenneth Paradzai Kadzunge is the first respondent's father.

3. The first respondent is opposed to the relief sought by the applicant. His case is that after the death of the late Solomon Kadzunge, the property became an estate and Doreen Marekera became the surviving spouse who was entitled to the property and she ceded it to his father the late Kenneth Paradzai Kadzunge. The first respondent says that the applicant who was then divorced had no rights to the estate of the late Solomon Kadzunge. The first respondent was also opposed to applicant's proposal that they share the house equally.

4. At the hearing of the matter, I sought further clarification from the parties. They both agreed that when the late Solomon Kadzunge passed on, his estate was registered and Doreen Marekera the surviving spouse became the executor of the estate. It was also common cause that the first respondent is the executor of the estate late Kenneth Paradzai Kadzunge. The applicant claimed ownership of the house solely on the basis of a court order at divorce. She had not been a co – owner of the property as her name was not registered together with that of Solomon Kadzunge.

5. What comes out from the facts above is that the property is currently held under the estate late Kenneth Paradzai Kadzunge and this result came about as a result of the administration of the estate of the late Solomon Kadzunge by Doreen Marekera who is the surviving spouse. After the divorce, the applicant did not challenge the registration of the house in the names of the late Solomon Kadzunge until he died and hence the property became an estate of her former husband. Her claim lies against the estate late Solomon Kadzunge which she must seek to reopen so as to table her claims instead of seeking to challenge the first respondent concerning his late father's title or rights. For her to establish her claims against the said estate of her late former husband, that estate must be represented by an executor because it is only an executor who can represent a deceased estate. See *Sibanda* v *Moyo and Others* HB 51/21. She cannot seek to wrestle the property from the first

respondent who is now an executor and beneficiary to his late father's estate without first challenging how the first respondent has acquired such rights. Again, at the very best of her claim, she would not be entitled to full ownership of the property since her late former husband had rights as well over the same property. She has failed to demonstrate any fraudulent conduct against Doreen Marekera whom she did not even cite or join to these proceedings. She has also not sued the first respondent in his official capacity as the executor of the estate late Kenneth Paradzai Kadzunge nor has she filed any claim against the estate under which the property is currently held.

6. The applicant has failed to prove that she has rights of ownership of the property as against the estate late Kenneth Paradzai Kadzunge without first proving that she is entitled to such property under the estate of the late Solomon Kadzunge with whom she divorced and under whose name the property was to remain during his lifetime. She is accordingly not entitled to the declaration of ownership of the property and neither has she made up a proper case for the registration of the property in her names. The application is accordingly dismissed with costs.

SIZIBA J